

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ramsey AlQaisi	Team: Squad #15	CCRB Case #: 201410643	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 10/16/2014 7:58 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/16/2016	Precinct: 75		
Date/Time CV Reported Fri, 10/17/2014 2:17 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/17/2014 2:17 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Eric Meza	05566	925744	WARRSEC
2. SGT Raymond Tomins	05336	902480	WARRSEC
3. Officers			WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Michael Ragona	05697	916485	WARRSEC
2. DT3 Michael Perez	02470	930939	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . SGT Raymond Tomins	Discourtesy: Sgt. Raymond Tomins spoke rudely to § 87(2)(b)	B . Unsubstantiated
C . DT3 Eric Meza	Discourtesy: Det. Eric Meza spoke rudely to § 87(2)(b)	C . Unsubstantiated
D . SGT Raymond Tomins	Abuse: Sgt. Raymond Tomins threatened to arrest § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated
E . SGT Raymond Tomins	Off. Language: Sgt. Raymond Tomins made remarks to § 87(2)(b) based upon race.	E . Unsubstantiated

Case Summary

On October 16, 2014, at approximately 7:58 a.m., Sgt. Raymond Tomins, Det. Michael Ragona, and Det. Eric Meza of the Warrant Section went to § 87(2)(b), in Brooklyn to apprehend § 87(2)(b) for an active New York State parole warrant. § 87(2)(b)'s mother, § 87(2)(b) goes to the front door when she heard loud knocking. § 87(2)(b) told the officer that she would have to get her glasses to read the warrant through the peephole before opening the door. § 87(2)(b)'s other son, § 87(2)(b) told § 87(2)(b) to not open the door. § 87(2)(b) and § 87(2)(b) blocked the way of § 87(2)(b) when she went to open the door. The officers kicked in the front door and entered the apartment (**Allegations A**). § 87(2)(b) alleged that Sgt. Tomins told her, "Shut the fuck up," and "I should arrest your ass and your son because you were harboring a fugitive," and Det. Meza said, "If you would have opened the fucking door you would have seen the warrant." (**Allegations B, C, and D**) The officers apprehended § 87(2)(b) from a bedroom in the apartment. § 87(2)(b) and § 87(2)(b) alleged that Sgt. Tomins called § 87(2)(b) an animal (**Allegation E**). § 87(2)(b) believed this statement was a racist remark.

§ 87(2)(g)

Mediation, Notice of Claim, and Criminal Histories

This case was ineligible for mediation due to damage to the front door of § 87(2)(b)'s apartment and § 87(2)(b)'s arrest.

§ 87(2)(b) has not filed a Notice of Claim with the City of New York as of May 12, 2015 with regard to the incident (Board Review 01).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (Board Review 03).
- Sgt. Tomins has been a member of the service for twenty-two years and there is one substantiated CCRB allegation against him (Board Review 03).
 - In case number 201206370, an allegation of an entry and search was substantiated. The Board recommended charges, but the NYPD disposition on the case is not available.
 - There are eight additional CCRB cases where entry and search allegations have been pleaded against Sgt. Tomins. He was not substantiated in these cases.
- Det. Meza was a member of the service for fifteen years and there are no substantiated CCRB allegations against him (Board Review 03). § 87(2)(g).

Potential Issues

- § 87(2)(b) provided an unverified phone statement to the CCRB on November 24, 2014. § 87(2)(b) provided an unverified phone statement on December 10, 2014. However, § 87(2)(b) and § 87(2)(b) did not provide verified statements. After

numerous contact attempts between October 21, 2014 and March 12, 2015, both were deemed uncooperative to the investigation (Board Review 08).

- During § 87(2)(b)'s in-person interview, she indicated that her neighbor, § 87(2)(b) was visited by the police officers on the same day and that she told her that they were rude to her. After numerous attempts to contact § 87(2)(b) between March 6, 2015 and March 23, 2015, she was deemed unavailable to the investigation (Board Review 08).
- On May 22, 2015, the in-house NYPD Monitoring Analysis Section confirmed that Det. Ragona retired from the New York City Police Department on March 19, 2015 (Board Review 13). § 87(2)(g).

NYPD Documents

Warrant Investigative Data Sheet

On October 16, 2014, Det. Ragona was assigned as the investigating officer to the New York State parole warrant for § 87(2)(b) was released on parole from Westchester County to a three-quarters house located at § 87(2)(b) in Brooklyn. On October 16, 2014, § 87(2)(b) was not in the shelter system database which would indicate that he was not at the three-quarters house.

In this document, Det. Ragona indicated that he along with members of the Brooklyn North Warrant Team visited the address listed for § 87(2)(b)'s New York State Department of Correction records, § 87(2)(b) which was where his mother, § 87(2)(b) lived. Det. Ragona knocked on the door. § 87(2)(b) said through the door that § 87(2)(b) was not there and she would not open the door. After twenty minutes of speaking with § 87(2)(b) and § 87(2)(b) through the door and them responding that they would not open it, Det. Michael Perez saw § 87(2)(b) look through the back window and attempt to exit out of it. Det. Ragona forcibly opened the door and § 87(2)(b) was found in the rear right bedroom hiding in the closet. § 87(2)(b) was arrested without incident (Board Review 12).

Other Document

NYS Parole Warrant # § 87(2)(b)

According the certified copy of the warrant authorized by New York State Senior Parole Officer McCoy on October 2, 2014, § 87(2)(b) violated the terms of his release and needed to be returned to the custody of the New York State Department of Correction. The warrant listed § 87(2)(b)'s pedigree information but did not list his known address (Board Review 04).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) did not see who forcibly opened the door but she stated that Sgt. Tomins said that he did it. Sgt. Tomins acknowledged being the officer who kicked down the door and Det. Meza corroborated his statement. However, in the Warrant Investigative Data Sheet, Det. Ragona stated that he forcibly opened the door. § 87(2)(g)

§ 87(2)(g)

Investigation Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A – Abuse of Authority - Officers entered and searched § 87(2)(b)

in Brooklyn.

It is undisputed that officers assigned to the NYPD Warrant Section forcibly entered § 87(2)(b)'s apartment in order to arrest § 87(2)(b) who was wanted on a New York State parole violation.

§ 87(2)(b) and her other son, § 87(2)(b) consistently refused to open the door for the officers throughout the incident even when they were aware that § 87(2)(b) was inside of the apartment.

Several factors determine whether exigent circumstances are present for a warrantless entry: (1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry, People v. McBride 14 N.Y.3d 440, 446(2010) (Board Review 01).

The Warrant Data Investigative Sheet indicated that the officers responded to § 87(2)(b)'s apartment, which is listed as § 87(2)(b)'s New York State Department of

Correction address, after they were not able to locate him within the shelter system database as a resident of a three-quarters house as required under the terms of his conditional release.

While Det. Perez was monitoring the outside of § 87(2)(b) apartment building, he observed § 87(2)(b) attempting to flee the apartment through a bedroom window. At this point, Det. Perez notified the officers who were standing outside of § 87(2)(b)'s apartment door. Facing the possibility that § 87(2)(b) may escape if they did not gain entry into the apartment without further delay, the officers took down the door and ran inside where they apprehended § 87(2)(b).

§ 87(2)(g)
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§ 87(2)(g) Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Discourtesy - Sgt. Raymond Tomins spoke rudely to § 87(2)(b)

Allegation C – Discourtesy - Det. Eric Meza spoke rudely to § 87(2)(b)

Allegation D – Abuse of Authority - Sgt. Raymond Tomins threatened to arrest § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

Allegation E – Offensive Language - Sgt. Raymond Tomins made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) alleged that Sgt. Tomins told her, "Shut the fuck up," and "I should arrest your ass and your son because you were harboring a fugitive," and Det. Meza said, "If you would have opened the fucking door you would have seen the warrant."

§ 87(2)(b) stated that Sgt. Tomins told § 87(2)(b) "When we say open the door, you open the door you fucking bitch" (Board Review 05). § 87(2)(b) and § 87(2)(b) alleged that Sgt. Tomins called § 87(2)(b) an animal (Board Review 06). § 87(2)(b) believed this statement was racist. § 87(2)(b) did not make these allegations (Board Review 07).

Sgt. Tomins and Det. Meza denied making these statements or hearing any officer make these statements or use any profanity. The investigation was unable to interview Det. Ragona regarding these allegations due to his retirement from the Police Department.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) Therefore, it is recommended that **Allegations B, C, D and E** be closed as **unsubstantiated**.

Pod: 15

Investigator: _____ Ramsey AlQaisi _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date